



TERMS & CONDITIONS

1. **Models may only belong to ONE AGENCY ONLY and may not work for anyone else.**
Termination of this contract will be immediate, should we discover that the model/s are working directly with the client, without Bambini Models being aware.
2. **Details that need to be communicated to the agency**
 - HEIGHT – to be done every two/three months and **EVERY MONTH** for babies
 - If you cut your child's hair
 - If your child loses any teeth, has visible cuts or bruises or broken limbs
 - If your child is sick
 - HOLIDAYS *before* you go away!!
 - Change of telephone numbers & address
 - APPOINTMENTS that you cannot change
3. **Direct Bookings** – Should one of our clients' production managers book your child directly, **notify us immediately**, as we need to keep a record of all the bookings, so that that we can invoice correctly.
4. **Shoot Details** – An accurate record of the following should be kept at all times:
 - duration of a shoot –

○ 0-4 years	½ day = 3 hours on set	and full day = 6 hours
○ 5-14 years	½ day = 4 hours on set	and full day = 8 hours
 - Arrival and departure times – *sms/whatsapp us the details as soon as you have arrived & signed out.* This is how we will know whether to charge full day rate. Clients often book half day, with an option for full day, and don't let us know. We will also be able to see if overtime and/or a travel fee need to be charged.
Please don't tell us two to three months after the shoot, as it will be too late and your child will only be paid on the information that was provided to Bambini Models.
 - the client's name
 - the location e.g. Muizenberg / Franschoek etc.
 - Parents need to get a diary for the season so that they can note when the children have castings, options and bookings. This way there can be no problem of *forgetting* a casting or an option!!
5. **Rates** – We work according to the NAMA Rates Guideline (National Association of Model Agencies)
On all bookings, Bambini Models charges a booking fee to the client, on all hourly, daily and usage fees.
The booking fee is included in the original rate quoted by the client, but this is not part of the model's rate.
Please bear in mind when you see the rates at castings or on forwarded emails. Bambini Models will deduct commission on all jobs and this has no bearing on the booking fee paid by the client. Both agency fees and models fees will be invoiced by the agent.
 - A 20% booking fee is charged to the production/film company for services rendered
 - A 20% agency commission is deducted from the model's rate for getting them the job
6. **Performance Contracts** – Because of the complexities of contracts, performance agreements and model release forms, **no parent may sign any agreement directly with a client.** Do not feel intimidated if a client asks you to sign forms – simply tell them to send them to your agent, stating that you have given your agent the authority to sign any on your behalf.



7. **SARS**

All models are obliged to be registered with SARS as tax payers. Registration needs to be done once you/your child has his/her first booking. Please email me the tax no. as soon as you get it.

The production companies will no longer accept invoices without the model's tax number clearly indicated.

PAYE – 25% PAYE is deducted by our clients. All PAYE is reimbursed to the model at the end of the tax year, provided that a tax return is submitted.

IRP5s – Please note that IRP5s are only issued if the payment is done within the tax year. If a shoot is done e.g. in December/January, but paid in March, the IRP5 will only be issued for the following tax year. Therefore the PAYE will also only be reimbursed in the following tax year.

8. **Payment** – This takes 90 days to reach the agent. The reason for this is that invoices take a certain amount of time to be processed, firstly by the production company in South Africa, then by the overseas accounts departments.

The 90 day period only begins from **the last day of shoot**.

Once the job ends, the production coordinators have to call in all the invoices pertaining to the shoot and this can take time, especially if everybody has not submitted their invoicing.

If there is a query with any one of the many suppliers, this also delays the final invoicing to the overseas client.

The invoice then gets couriered overseas and there can be a further delay if the overseas client has any queries ...
So please be patient!

9. ***At no time may parents deal directly with clients. It will not be tolerated!***

10. When arriving at a casting, *fill in the forms immediately* as they are usually numbered. Please don't expect to walk in and out straight away . . . this would be a dream come true!! Allow at least 1 – 1^{1/2} hours, so remember to take refreshments and things to amuse the kids

11. Always fill in the agency's details on the casting sheet.

12. Often agents are told to send only a specified number of kids to a casting. If you cannot make a casting, please ***notify me immediately*** so that I can send another child.

13. During the season things become hectic with a lot of short-notice castings and bookings. There are times when I may have to call you after normal working hours – even unreasonable hours!! This would most likely only happen the evening before the shoot begins.

We do have last-minute castings/bookings (briefed in the morning for the same afternoon!). We apologize in advance for the disturbance that this may cause.

If you wish to leave the agency, **1 month's written notice is required.** The child/children are obliged to work for the duration of the 1 months' notice period.

It is not always possible to find the final product relating to your child's shoot. In some instances, it may never be published. We know how exciting it is to see the final product of all the work that was put in, and we as Bambini Models will always endeavour to try our best to obtain this. This should however be considered a privilege, not a right.

Under no circumstances what so ever, shall you post/share/send any digital images from your day/s on set. The clothing/product that your child is advertising on behalf of the brand/client, will remain confidential until date of release/publishing. **Breach of this may have legal consequences.**

Upon signing this document, you grant Bambini Models 'power of attorney' to sign all modelling related matters on my/child's behalf.

Bambini Models may also make use of all model images for the purposes of marketing its business.

I, _____ acknowledge having read and accepted the terms and conditions of Bambini Models

Signature _____

Date _____